

OPINION BY M. NYHOLM.

[*Translation.*]

It will be noted that the order of Court, which is rather an interlocutory judgment, arrives at the conclusion that the provisions of 1815 involving the withdrawal of the French customs line in the District of Gex are not abrogated and cannot be abrogated without Switzerland's consent. This conclusion does not appear justified by the text of Article 435, paragraph 2, of the Treaty of Versailles.

In this article, the Conference of Versailles, whose authority is recognized by the Parties, declared that the stipulations of 1815 are no longer consistent with present conditions, and that it is for France and Switzerland to come to an agreement together with a view to settling the status of these territories.

The clause, as it stands, contains a sufficiently clear indication that an existing state of affairs is abolished and a new state of affairs established.

No doubt the article would have been still clearer if the first sentence had been followed by an express declaration of abrogation of the provisions, and if the second sentence further contained rules for the establishment of the new state of affairs, and an indication of what would follow in case of disagreement. But, even without these additions, the idea of a change in the situation seems sufficiently clear.

In the Court's decision, there is a special argument drawn from a comparison of the first and second paragraphs of Article 435 to the effect that the words "are no longer consistent with present conditions" do not, in the first paragraph, imply automatic abrogation, and that the same must be the case in the second paragraph. But this argument runs counter to the fact that in the first paragraph an agreement existed, of which it was sufficient to take note. The Court then argues that the words "stipulations are no longer consistent with present conditions" are merely a declaration that the Powers cease to interest themselves in the matter, and that the terms of the article do not involve an abrogation. But how can it be imagined that a legislator should

intend to maintain in force rules which he himself declares to be out of date? The words, therefore, express the intention that these rules *shall disappear*. That such was the intention, and further that this intention was carried into effect is shown from the fact that the former situation—withdrawal of the customs line—was *replaced* by a quite different situation, namely, that the relations between France and Switzerland in the districts in question have become free and are made subject to an agreement to be entered into by the two countries. It is clear that the former state of things and the new freedom *cannot exist at the same time*; they are not two *mutually supporting* rules; on the contrary, the one excludes the other. It follows that, from a textual interpretation of Article 435, *the provisions of 1815 are abrogated*.

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Against such a result, Switzerland protested. It is important to note that, at the last moment, Switzerland took certain steps; but she applied solely to France in her capacity as a neighbour and not as one of the Powers which created the Treaty of Versailles. The record indeed shows that Switzerland *never applied to the Powers*. All that could be drawn from the Swiss observations and the French replies is strictly without legal value, since *France*, a neighbour and a future opponent in the dispute, *had no right to reply in the name of the Powers*.

Switzerland, in her note of May 5th, protested against the abrogation, and made reservations. But any protest in the note, which emanates from Switzerland herself, must be based on the existence of a right; it goes without saying that in view of the wording of the 1815 provisions, in which Switzerland was not even mentioned, *it is for the latter to prove the existence of the right claimed by her*.

To prove her *right*, Switzerland cannot rely on the mere *existence* of the note, which, as has been said, emanates from Switzerland herself. It is only *the insertion* of this note as an annex which might in itself constitute an important element of proof in Switzerland's favour. The publication of an

annex containing the Swiss contentions is in fact equivalent to an authoritative interpretation of Article 435.

But, as has been said, the terms of the Swiss note with its "reservations" imply the prior existence of a *right*. It is not therefore possible to place importance, as the Court does, on the fact that, in the note of May 5th, Switzerland states that "she acquiesces under reservations". To make such a declaration it is necessary first to have a right on which to base oneself.

The Court's decision stops short at the proof which might be drawn from *the insertion* of the annex. This proof would be conclusive *if the note of May 5th were the only annex*. But this annex loses its effect as proof from the fact that by the insertion of Annex II, the French note of May 18th, there are two notes directly opposed to one another. It is no longer possible to consider one of the notes only, for they are an indivisible whole and incapable of separation.

The consequence is that the Powers, instead of appending to Article 435 an authoritative interpretation, have set out two arguments which might be put forward in regard to interpretation. The purpose of this twofold insertion may be uncertain; but the fact remains that, from the note of May 5th, no conclusion can be drawn as to the creation of a right for Switzerland.

In order to revive the importance of the note of May 5th, the only method is to set aside the French note of May 18th, and this is what the Court's decision has done. But this result seems to be all the less admissible, as the reasons do not appear to justify the decision.

As the principal ground for setting aside the note of May 18th, it is not sufficient to say, as the Court does, that it "is unable to regard as decisive the arguments to the contrary which it has been sought to deduce from the whole of the French note of May 18th, 1919". Nor does the second ground for the Court's decision seem any sounder, namely, that "the Court—which, though its task is to interpret the said article *with its annexes*, nevertheless remains free to estimate the weight to be attached from this point of view to each of the annexes—is unable to regard it [the French

note] as possessing any weight for the purposes of interpretation, having regard especially to the fact that it [the note] cannot in any circumstances affect the conditions of the Federal Council's acquiescence in the article in question, that acquiescence being a unilateral act on the part of Switzerland". The above grounds seem to be simple assertions rather than arguments. The French note of May 18th forms with the Swiss note of May 5th a single whole explaining the two sides of the question. If, as the decision says, the French note of May 18th "cannot affect the conditions of [Swiss] acquiescence" which is "a unilateral act on the part of Switzerland", no more is it possible to say that the Swiss note could affect the conditions of the French note. The two notes must be placed on an equal footing without it being possible, apart from sound reasons to the contrary, to give the preponderance to one of them. Having set aside the argument based on *the insertion* of the note of May 5th, it remains to be considered whether Switzerland has any *rights*. The declarations in the note of May 5th lead to suppose that these rights exist, and this is what the Court's decision seems to recognize. Without discussing these pretended rights, referred to in Counsel's arguments, the Court merely says that in its opinion the note of May 5th "is entirely based on the existence of such a right".

A consideration of the Swiss arguments on this point seems however to lead to the conclusion that such rights do not exist.

In the first place, Switzerland asserts that the 1815 provisions created for France a servitude in Switzerland's favour. If these provisions can involve, as regards the signatory Powers, an obligation imposed on France, they none the less have nothing in common with the idea of a servitude, and they are certainly not a servitude as regards Switzerland. The withdrawal of the customs line is a domestic affair of France. It may *de facto* be of importance as regards customs matters for the neighbouring State, but no *de jure* relation is thereby set up between the two countries.

Secondly, Switzerland's argument that the provisions are for her stipulations *in favorem tertii* is without foundation. Such provisions are not admissible in inter-states relations. The principle of sovereignty is opposed thereto. The "stipulation

in favorem tertii" is, by its nature, a civil obligation which can hardly apply between nations with their constitutional systems. Amongst other reasons, the unilateral character is ill suited to relations between States which must be placed on a footing defined by their reciprocal rights, and further, the *execution* of such a provision could not fail to give rise to difficult problems. As a matter of fact, the stipulation *in favorem tertii* does not appear to be valid in international law, for it does not create a right in favour of the third State, save of course when a new agreement is added to the original one. This theory is largely accepted by legal doctrine and the opinion of the most highly qualified authors on international law.

Thirdly, Switzerland maintains that the new régime set up by Article 435 (agreement) presupposes that, failing an agreement, recourse must always be had to the former system. But this interpretation is grammatically impossible. In such a case it would have been necessary to add words to the end of the article to make this clear.

Fourthly, it is known that one draft of Article 435, paragraph 2, contained the clause that the 1815 provisions were abrogated. Evidently, the removal of these words might constitute an argument in Switzerland's favour. But information as to the reasons for this removal and the circumstances connected therewith is entirely lacking. Even with the removal, the text of Article 435, however, remains clear.

Moreover, there is in the whole matter no information as to the facts to form the basis for a decision in law. Nothing is known of what took place at Paris. There are no minutes nor even the slightest indication as to details. Moreover, it appears from a declaration of M. Ador, published some years afterwards, that his principal object was the question of Swiss neutrality, and that, as regards the free zones, he secured that the question, which was moreover regarded as secondary, "should be dealt with separately".

It therefore appears that no fact and no argument can justify the Swiss contention that the provisions of 1815 are maintained in force.

(Signed) D. G. NYHOLM.